

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
DANIEL E. LAWSON,

Index No.:

Plaintiff,

-against-

**VERIFIED
COMPLAINT**

NEW YORK CITY, NEW YORK CITY POLICE
DEPARTMENT, NEW YORK CITY POLICE OFFICER
BRANDON GONZALEZ, in his individual and official
capacities, and NEW YORK CITY POLICE OFFICER
JOHN DOES #1-10 (fictitiously named), in their individual
and official capacities,

Defendants.

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Plaintiff DANIEL E. LAWSON, by his attorneys, The Russell Friedman Law Group, LLP,
complaining of Defendants NEW YORK CITY, NEW YORK CITY POLICE DEPARTMENT,
NEW YORK CITY POLICE OFFICER BRANDON GONZALEZ, in his individual and official
capacities, and NEW YORK CITY POLICE OFFICER JOHN DOES #1-10 (fictitiously named),
in their individual and official capacities, alleges as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action in which Plaintiff, DANIEL E. LAWSON (hereinafter, “LAWSON” and/or “Plaintiff”) seeks relief from Defendants NEW YORK CITY, NEW YORK CITY POLICE DEPARTMENT, NEW YORK CITY POLICE OFFICER BRANDON GONZALEZ, in his individual and official capacities, and NEW YORK CITY POLICE OFFICER JOHN DOES #1-10 (fictitiously named), in their individual and official capacities, (hereinafter, collectively referred to as “Defendants”), for committing acts under color of law and depriving

Plaintiff of rights secured under 42 USC § 1983 grounded in rights secured to him under the Fourth, Fifth, Sixth, Eighth, and Fourteenth Amendments to the Constitution of the United States.

2. Plaintiff alleges that Defendants engaged in unlawful conduct. Specifically, Defendants falsely arrested and maliciously prosecuted Plaintiff. Further, Defendants, during the course of Plaintiff's pre-trial detention at Midtown South Precinct, subjected Plaintiff to ridicule, harassment, assault, unlawful detention, and inhumane conditions causing physical and emotional harm and extreme pain and suffering in violation of Plaintiff's Constitutional rights and New York State laws. All acts were committed under the color of law and deprived Plaintiff of rights secured to him under the Fourth, Fifth, Sixth, Eighth, and Fourteenth Amendments of the Constitution of the United States.

3. Individual Defendants, without justification or any reason except an intent to deprive Plaintiff of his rights and knowledge that their conduct had the tacit authorization of Defendant NEW YORK CITY, deprived Plaintiff of his rights under the Constitution of the United States and New York laws.

4. Plaintiff seeks damages, both compensatory and punitive, award of costs, interest, attorney's fees, and such other and further relief as this Court deems just and equitable.

JURISDICTION AND VENUE

5. This Court has jurisdiction as the causes of action alleged herein arose in the City and County Bronx, State of New York.

6. Pursuant to CPLR § 503(a), venue is proper in this Court as the substantial part of the events and/or omissions giving rise to Plaintiff's claims occurred in the County of Bronx, State of New York.

PARTIES

7. Plaintiff, DANIEL E. LAWSON is a resident of the County of Bronx, State of New York.

8. Defendant, NEW YORK CITY (hereinafter, referred to as “NYC”) is a municipal subdivision of the State of New York, duly existing by reason of and pursuant to the laws of the State of New York.

9. Upon information and belief, at all relevant times described herein, Defendant CITY, by its agents and/or employees, operated, maintained, and controlled the NEW YORK CITY POLICE DEPARTMENT.

10. Upon information and belief, at all relevant times described herein, Defendant NEW YORK CITY POLICE DEPARTMENT (hereinafter, referred to as “NYPD”) is a subdivision and/or agency of Defendant CITY and has an office at One Police Plaza, New York, New York.

11. Upon information and belief, at all relevant times described herein, Defendant NEW YORK CITY POLICE OFFICER BRANDON GONZALEZ (hereinafter, referred to as “GONZALEZ”) is a police officer who is being sued in his individual and official capacities and is an employee of Defendants CITY and NYPD. At all relevant times described herein, GONZALEZ was acting under color of state law within the scope of his employment as a police officer employed by Defendants CITY and NYPD, and works under the supervision, direction, and/or control of his supervisors in the NYPD.

12. Upon information and belief, at all relevant times described herein, Defendant NEW YORK CITY POLICE OFFICER JOHN DOES #1-10 (hereinafter, referred to as “PO DOES”) are police officers who are yet unknown and are being sued in their individual and official capacities and are employees of Defendants CITY and NYPD. At all relevant times described

herein, PO DOES were acting under color of state law within the scope of their employment as police officers employed by Defendants CITY and NYPD, and work under the supervision, direction, and/or control of their supervisors in the NYPD.

COMPLIANCE WITH NEW YORK GENERAL MUNICIPAL LAW

13. Plaintiff served a Notice of Claim upon CITY on January 5, 2023, within ninety days of the events giving rise to his claims.

14. On September 14, 2023, Plaintiff appeared for an examination pursuant to § 50-h of the New York General Municipal Law.

15. More than thirty days have elapsed since Plaintiff served his Notice of Claim and Defendants have not offered adjustment or payment thereof.

FACTUAL ALLEGATIONS

16. LAWSON is a thirty-four (34) year old father of two children.

17. On or about October 7, 2022, LAWSON was lawfully driving his motor vehicle. The mother of his children and his two children (a nine-year-old and nine-month-old) were in the vehicle with him.

18. On the aforementioned date, LAWSON was driving lawfully with his seatbelt on, not speeding and/or driving erratically on 139th Street and 140th Street, Bronx, County of Bronx, State of New York.

19. While driving on the aforementioned public roadway at approximately between 9:40 P.M and 10:51 P.M., LAWSON was pulled over by GONZALEZ and several plain-clothed New York City Police Officers, PO DOES, without probable cause or reason to believe an infraction had been committed.

20. Upon being pulled over, GONZALEZ and/or PO DOES asked LAWSON for his license and registration.

21. LAWSON inquired as to the reason he was being pulled over. GONZALEZ and/or PO DOES refused to answer LAWSON.

22. GONZALEZ and/or PO DOES then directed LAWSON to turn off the ignition of his vehicle and hand them the keys. LAWSON inquired as to the reason for having to provide the keys to his vehicle. GONZALEZ and/or PO DOES refused to answer LAWSON.

23. GONZALEZ and/or PO DOES told LAWSON that he was being disorderly and ordered LAWSON to step out of the vehicle.

24. LAWSON complied with GONZALEZ and/or PO DOES' unlawful order and stepped out of the vehicle.

25. LAWSON was escorted to the rear of his vehicle by GONZALEZ and/or PO DOES where he was unlawfully searched.

26. GONZALEZ and/or PO DOES now sought to unlawfully remove LAWSON's family from the vehicle. LAWSON's girlfriend was seven (7) months pregnant at the time. LAWSON's daughter, terrified about what was happening, began to cry uncontrollably.

27. LAWSON asked GONZALEZ and/or PO DOES if he could go to his daughter to try to console her. GONZALEZ and/or PO DOES told him to shut-up and again stated that he was being disorderly.

28. At which point, LAWSON was placed in handcuffs, arrested, and transported to the precinct. LAWSON was not advised as to why he was being arrested nor read his Miranda rights.

29. LAWSON's family was left in the car and they were forced to wait for hours until LAWSON was released.

30. At the precinct, LAWSON was searched, placed in a cell, and processed. Several hours later, LAWSON was issued two desk appearance tickets for Reckless Driving in violation of NY VTL § 1212 and Disorderly Conduct in violation of NY PL § 240.20.

31. In effectuating the arrest, GONZALAEZ and/or PO JOHN DOES were acting under the color of law.

32. There was no legitimate basis and/or lawful authority for the arrest of LAWSON nor the pulling over of his vehicle.

33. LAWSON was arraigned on October 27, 2022 at Bronx Criminal Court.

34. Plaintiff was required to appear multiple times in court after Defendants had incontrovertible evidence that Plaintiff was not involved in the alleged crimes he was arrested and charged with.

35. All charges against LAWSON were dismissed and terminated in his favor.

36. LAWSON was deprived of his liberty, caused to suffer economic hardship, mental anguish, pain and suffering, exposed to disgrace, public humiliation, and embarrassment.

37. The above conduct has been and is known to CITY. Despite this knowledge, CITY has failed to take any action.

38. At all relevant times to the instant Complaint, Defendants, separately and in concert, engaged in acts or omissions which constituted deprivation of the Constitutional rights, privileges, and immunities of Plaintiff LAWSON and, while these acts were carried out under color of law, they had no justification or excuse in law and were instead gratuitous, illegal, improper, and unrelated to any activity in which law enforcement officers may appropriately and legally engage in the course of protecting persons and property ensuring civil order.

39. At all relevant times to the instant Complaint, Defendants, and each of them, had the power and duty to restrain the other Defendants and prevent them from violating the law and the rights of Plaintiff LAWSON, but each of the Defendants failed and refused to restrain the other Defendants and thereby became a party to unlawfully subjecting Plaintiff LAWSON to harm and denial of basic rights.

40. That the injuries Plaintiff suffered were caused solely by the conduct of Defendants and Plaintiff in no way contributed to or caused the injuries he suffered.

41. The conduct of Defendants was the proximate cause of Plaintiff's injuries.

42. The injuries suffered by Plaintiff are permanent in nature.

AS AND FOR A FIRST COUNT
42 U.S.C. § 1983 – False Arrest
(Against Defendant Officers)

43. Plaintiff repeats, reiterates, and realleges each and every allegation contained in those paragraphs of the Verified Complaint marked and numbered previously and/or herein with the same force and effect as if more fully set forth at length below.

44. That the aforesaid arrest and imprisonment of Plaintiff by Defendants was under the color of State Law, without any reasonable cause or belief that Plaintiff was in fact guilty of the crime for which he was charged.

45. That said Defendants, their agents, servants, and employees falsely arrested and illegally imprisoned Plaintiff and intentionally subjected Plaintiff to confinement which Plaintiff was conscious of, and said confinement was not otherwise privileged or consented to by Plaintiff.

46. That by reason of the aforesaid unlawful arrest and imprisonment, caused willfully and maliciously by Defendants, their agents, servants, or employees, Plaintiff was wrongfully deprived of his rights and privileges and benefits as provided to him under the Constitution of the

United States of America, was subjected to pain and suffering, great indignities, ridicule, scorn, loss of freedom, humiliation, mental distress, was prevented from attending his usual activities, was injured in his reputation in the community, and was further caused to incur monetary expense, including legal fees.

47. That the aforesaid false arrest and imprisonment of Plaintiff violated the Fourth Amendment of the United States Constitution.

48. That Defendants committed the foregoing acts willfully and with malicious disregard for Plaintiff's rights and are, therefore, liable to Plaintiff for compensatory as well as punitive damages.

49. As a proximate result of Defendants' intentional and malicious actions, Plaintiff was greatly humiliated, injured in his reputation, caused to incur attorney's fees, associated legal expenses, and other special damages, and has suffered great mental anguish causing damages, all to Plaintiff's damage, in an amount to be determined at trial but not less than ONE MILLION DOLLARS (\$1,000,000.00), plus punitive damages, attorney's fees, and costs.

AS AND FOR A SECOND COUNT
42 U.S.C. § 1983 – Malicious Prosecution
(Against Defendant Officers)

50. Plaintiff repeats, reiterates, and realleges each and every allegation contained in those paragraphs of the Verified Complaint marked and numbered previously and/or herein with the same force and effect as if more fully set forth at length below.

51. That Defendants instituted and continued the criminal proceedings against Plaintiff in the absence of any probable cause and/or evidence for said prosecution.

52. That the prosecution against Plaintiff was with malice.

53. That the dismissal against Plaintiff was a favorable termination in favor of Plaintiff.

54. That said malicious prosecution of Plaintiff by Defendants constitutes a deprivation of Plaintiff's Fourth Amendment Constitutional right.

55. As a proximate result of Defendants' intentional and malicious actions, Plaintiff was greatly humiliated, injured in his reputation, caused to incur attorney's fees, associated legal expenses, and other special damages, and has suffered great mental anguish causing damages, all to Plaintiff's damage, in an amount to be determined at trial but not less than ONE MILLION DOLLARS (\$1,000,000.00), plus punitive damages, attorney's fees, and costs.

AS AND FOR A THIRD COUNT
42 U.S.C. § 1983 – Failure to Intervene
(Against All Defendants)

56. Plaintiff repeats, reiterates, and realleges each and every allegation contained in those paragraphs of the Verified Complaint marked and numbered previously and/or herein with the same force and effect as if more fully set forth at length below.

57. On or about October 7, 2022, Plaintiff was subjected to false arrest and unlawful search and seizure of Plaintiff's person at the hands of Defendants.

58. Despite Defendants having irrefutable evidence of Plaintiff's innocence, Defendants nonetheless arrested Plaintiff.

59. Each of the Defendants new and/or deliberately ignored the fact that the false accusations, detainment, false arrest, and illegal seizure violated the rights guaranteed to Plaintiff under the Fourth and Fourteenth Amendments of the U.S. Constitution and 42 U.S.C. § 1983.

60. Each of the said Defendants had the authority, ability, and concurrent duty under 42 U.S.C. § 1983 to prevent the false arrest, wrongful detainment, and illegal search of Plaintiff,

yet neglected to prevent said violations from occurring and, further, failed to intervene to protect or aid Plaintiff when such violations did, in fact, occur.

61. Specifically, each and every one of the Defendants had the opportunity and responsibility to prevent the wrongful detainment and abuse of process against Plaintiff because each Defendant had actual notice of the wrongful actions of the other Defendants at the scene of the incident.

62. Defendants had the power to prevent the continued due process violations against Plaintiff yet failed to prevent or dismiss the unlawful charges against Plaintiff, or to protect Plaintiff from the unwarranted penalties that followed from the charges against him.

63. As a direct consequence of the actions of Defendants acting in furtherance of their duties as agents of their respective municipalities and agencies, Plaintiff suffered injuries, including but not limited to, stigmatizations, embarrassment, loss of liberty, and the infringement of his rights guaranteed to him under the U.S. Constitution.

64. As a direct consequence of the actions of Defendants, Plaintiff LAWSON suffered loss of standing in the community, loss of time, loss of freedom, loss of quality of life, damage to his name and reputation, special damages, attorney's fees, incidental fees/costs, and other financial impairments.

65. That, by reason of the foregoing, Plaintiff LAWSON suffered and continues to suffer irreparable injury and monetary damages, was greatly humiliated, injured in his reputation, caused to incur attorney's fees, associated legal expenses, and other special damages, and has suffered great mental anguish causing damages, all to Plaintiff's damage, in an amount to be determined at trial but not less than ONE MILLION DOLLARS (\$1,000,000.00), as well as punitive damages, attorneys' fees, and costs.

AS AND FOR A FOURTH COUNT***Monell*****(Against Defendant CITY)**

66. Plaintiff repeats, reiterates, and realleges each and every allegation contained in those paragraphs of the Verified Complaint marked and numbered previously and/or herein with the same force and effect as if more fully set forth at length below.

Failure to Supervise and Failure to Train

67. Defendant CITY was responsible for supervising, overseeing, and controlling its respective subordinates.

68. Defendant CITY had an express and/or implied duty to provide a reasonably safe environment for its citizens, including Plaintiff. At a minimum, it had a duty to keep him from being falsely arrested and maliciously prosecuted by its employees, which was foreseeable based upon past instances of misconduct, which were known to Defendant CITY.

69. Defendant CITY had an express and/or implied duty to provide a reasonably safe environment for its citizens, including Plaintiff. At a minimum, it had a duty to assure that its employees did not wrongfully and falsely arrest Plaintiff, which was foreseeable based upon past instances of misconduct, which were known to Defendant CITY.

70. Despite having this knowledge, Defendant CITY failed to take any remedial measures to prevent the aforementioned violations of Plaintiff's Constitutional rights.

71. The countenancing of this behavior created an environment within the NYPD wherein members were allowed to continue with their behavior, which led to the Constitutional rights of citizens being violated, including Plaintiff.

72. Defendant CITY intentionally failed to adequately supervise, control, oversee, train, and/or monitor its employees and members, who had a history of engaging in official misconduct, and failed to implement measures to prevent its employees and members from conspiring with each other to cover up their official misconduct.

73. Defendant CITY intentionally failed to adequately supervise, control, oversee, train, and/or monitor its employees and members from conspiring with each other to cover up their official misconduct and prevent them from continuously violating the Constitutional rights of individual citizens, including Plaintiff.

74. Defendant CITY negligently hired, retained, and/or supervised its employees and members when it knew or should have known that they posed a threat to individuals.

75. Defendant CITY knew or should have known of its employees and members' propensity for the conduct which caused Plaintiff's injuries, prior to the occurrence of the injuries.

76. At all times relevant hereto, Defendants' actions were willful, wanton, malicious, reckless, and/or outrageous in their disregard for the rights and safety of Plaintiff.

77. Defendant CITY was aware that there was a substantial likelihood that permitting its employees and members to carry on their regular duties would deprive the public of their civil rights, but failed to take adequate measures to resolve the wrong.

78. Defendant CITY's failure and refusal to adequately investigate its employees' actions, acquiescence in Defendants' conduct, failure to take any remedial action against Defendants, allowing Defendants to remain employed as police officers, gross negligence in its supervision of Defendants, and deliberate indifference to the rights of others by failing to act on information that Constitutional rights were being violated, subjects Defendant CITY to supervisory liability for the crime and Constitutional violations perpetrated against Plaintiff.

79. That, by reason of the foregoing, Plaintiff suffered and continues to suffer irreparable injury and monetary damages, was greatly humiliated, injured in his reputation, caused to incur attorney's fees, associated legal expenses, and other special damages, and has suffered great mental anguish causing damages, all to Plaintiff's damage, in an amount to be determined at trial but not less than ONE MILLION DOLLARS (\$1,000,000.00), as well as costs and attorneys' fees.

Custom, Policy, and Practice

80. It was the custom, policy, and practice of Defendant CITY to tolerate, condone, and encourage constitutional violations, such as those alleged by Plaintiff above, by failing to properly punish, charge, reprimand, and investigate allegations and incidents of misconduct by its employees and members.

81. Employees and members of CITY, such as the Individual Defendants in this action, were aware at all times alleged in this Complaint that their unconstitutional conduct would not be investigated or questioned, and that they would receive no reprimand or be punished for their conduct.

82. Employees of CITY, such as the Individual Defendants in this action, were aware at all times alleged in this Complaint that their unconstitutional conduct would not be investigated or questioned, and that they would receive no reprimand or be punished for their conduct and, further, that they would be indemnified from civil liability regardless of the illegality or unconstitutionality of their actions.

83. Failing to supervise, train, and reprimand such CITY employees and members of NYPD caused the injuries to Plaintiff through the actions and inactions of the Individual

Defendants.

84. By maintaining a *de facto* policy of automatic indemnification, Defendant CITY caused the injuries to Plaintiff through the actions and inactions of the Individual Defendants.

85. It was the custom, policy, and practice of Defendant CITY to blatantly ignore complaints and/or widespread allegations of malfeasance in order to shield the NYPD from receiving any bad press that would be generated from an investigation of police misconduct.

86. This custom, policy, and practice of Defendant CITY to ignore complaints and/or widespread allegations of false arrest and other malfeasance created an environment where foreseeable constitutional violations by their employees and members were rampant, including the violations of Plaintiff's constitutional rights.

87. Defendant CITY's failure to take action against its employees and members involved in this incident and in other similar incidents was part of a custom, practice, and procedure of neglect and deliberate indifference that directly caused the injuries to Plaintiff.

88. As authorized representatives of Defendant CITY, the employees and members' conduct of illegal arrests or threats of arrest without probable or reasonable cause, searches and seizure of arrestees, and malicious prosecutions constituted a custom, policy, and practice which renders Defendant CITY liable to Plaintiff as a "Person" acting under the color of state law.

89. Defendant CITY is, therefore, liable for violations of Plaintiff's constitutional rights as caused by the Individual Defendants, as described in more detail in the foregoing paragraphs, and Plaintiff has suffered damages therefrom.

90. That, by virtue of Defendant CITY's failure and refusal to adequately investigate the Individual Defendants' actions, acquiescence in the Individual Defendants' conduct, failure to take any remedial action against the Individual Defendants, allowing the Individual Defendants to

remain employed, gross negligence in its supervision of the Individual Defendants, and deliberate indifference to the rights of others by failing to act on information that constitutional rights were being violated by the Individual Defendants, Defendant CITY, which employed these Individual Defendants and policymakers during the relevant time period, exhibited a *de facto* custom, policy, or usage of unconstitutional conduct sufficient for the imposition of municipal liability under *Monell v. Dept. of Social Services*, 436 U.S. 658 (1978).

91. As a proximate result of Defendant CITY's customs, policies, and practices for creating an environment that tolerates, encourages, and condones such constitutional violations, Plaintiff was greatly humiliated, injured in his reputation, caused to incur attorney's fees, associated legal expenses, and other special damages, and has suffered great mental anguish causing damages, all to Plaintiff's damage, in an amount to be determined at trial but not less than ONE MILLION DOLLARS (\$1,000,000.00) plus attorney's fees and costs.

AS AND FOR A FIFTH COUNT
42 U.S.C. § 1983 – Abuse of Process
(Against All Defendants)

92. Plaintiff repeats, reiterates, and realleges each and every allegation contained in those paragraphs of the Verified Complaint marked and numbered previously with the same force and effect as if more fully set forth at length herein.

93. Defendants subjected Plaintiff to unlawful search and seizure without just cause or reason. Defendants abused the criminal process in falsely arresting and unlawfully and falsely searching Plaintiff, to satisfy their personal goals of covering up their wrongdoing and to further their own purposes of exercising their privilege for their own warped sense of power.

94. Defendants lacked reasonable suspicion to stop and detain Plaintiff, and further lacked any probable cause to arrest and prosecute Plaintiff.

95. Defendants created false and fabricated basis and statements for the purposes of unlawfully arresting Plaintiff.

96. Defendants' use of process for the aforementioned improper purpose amounted to an abuse of said process, which was initiated and used to the detriment of Plaintiff solely for a purpose that was/is outside the legitimate ends of the legal process. The purpose behind Defendants' actions was to protect Defendants' illegal conduct and to harass, intimidate, coerce, silence, and punish Plaintiff.

97. Defendants did not initiate the detainment, seizure, arrest, and prosecution of Plaintiff as a result of actual knowledge that a crime was committed. Defendants' clear intention was to cover up their unlawful conduct and to intimidate Plaintiff and cause harm to Plaintiff without proper motive, excuse, or justification of any kind.

98. As a direct consequence of the actions of Defendants, acting in furtherance of their duty as agents of CITY, Plaintiff suffered injuries, including but not limited to, stigmatization, embarrassment, loss of liberty, and the infringement of his rights guaranteed to him under the U.S. Constitution.

99. Defendants GONZALEZ and PO DOES, with the aid of other named Defendants, falsified evidence and committed perjury in order to cover up the fact that Defendants acted unlawfully.

100. As a direct consequence of the actions of Defendants, Plaintiff suffered loss of standing in the community, loss of time, loss of freedom, loss of quality of life, and loss of regular income, damage to name and reputation, special damages, incidental fees/costs, and other financial impairments.

101. That by reason of the foregoing, Plaintiff suffered and continues to suffer irreparable injury and monetary damages, in excess of ONE MILLION DOLLARS (\$1,000,000.00), as well as punitive damages and attorneys' fees pursuant to Title 42 § 1988.

AS AND FOR A SIXTH COUNT
Pendant State Claim – False Arrest/Imprisonment
(Against All Defendants)

102. Plaintiff repeats, reiterates, and realleges each and every allegation contained in those paragraphs of the Verified Complaint marked and numbered previously and/or herein with the same force and effect as if more fully set forth at length below.

103. Defendants caused Plaintiff to be falsely arrested/imprisoned.

104. Defendants caused Plaintiff to be confined and intended to have Plaintiff confined.

105. Plaintiff was conscious of the confinement, Plaintiff did not consent to the confinement, and the confinement was not otherwise privileged.

106. That by reason of the false arrest, Plaintiff suffered damages as set forth herein.

107. That by reason of the foregoing, Plaintiff suffered and continues to suffer irreparable injury and monetary damages, in a sum to be provided at trial but not less than ONE MILLION DOLLARS (\$1,000,000.00), plus punitive damages as to the Individual Defendants.

AS AND FOR A SEVENTH COUNT
Pendant State Claim – Malicious Prosecution
(Against All Defendants)

108. Plaintiff repeats, reiterates, and realleges each and every allegation contained in those paragraphs of the Verified Complaint marked and numbered previously and/or herein with the same force and effect as if more fully set forth at length below.

109. Plaintiff was arraigned and charged with Reckless Driving in violation of NY VTL § 1212 and Disorderly Conduct in violation of NY PL § 240.20.

110. As a result of the malicious prosecution, Plaintiff suffered substantial financial loss.

111. As a result of the false and unlawful charges, Plaintiff was required to make appearances in Court.

112. Defendants participated in the investigations of allegations against Plaintiff, as well as the criminal prosecution against him.

113. The criminal prosecution was commenced despite Defendants' knowledge that Plaintiff did not participate in the alleged crimes and that probable cause for the arrest and initiation of the prosecution did not exist.

114. The criminal prosecution was continued after Defendants knew that they had no probable cause for the original arrest and/or initiation of the prosecution existed.

115. By participating in the arrest and prosecution which they knew lacked probable cause, Defendants acted with malice against Plaintiff.

116. Defendants prosecuted Plaintiff with malice independent of their lack of probable cause.

117. The prosecution of Plaintiff was terminated favorably to him.

118. As a result of Defendants' malicious prosecution, Plaintiff's rights were violated.

119. That by reason of the foregoing, Plaintiff suffered and continues to suffer irreparable injury and monetary damages, in a sum to be provided at trial but not less than ONE MILLION DOLLARS (\$1,000,000.00), plus punitive damages as to the Individual Defendants.

AS AND FOR AN EIGHTH COUNT
Pendant State Claim – Negligence
(Against All Defendants)

120. Plaintiff repeats, reiterates, and realleges each and every allegation contained in those paragraphs of the Verified Complaint marked and numbered previously and/or herein with the same force and effect as if more fully set forth at length below.

121. Defendants had a duty to prevent and cease the unlawful search and seizure, wrongful detainment, false arrest, false imprisonment, and malicious prosecution upon Plaintiff as well as a duty to hire, to train, to investigate, supervise, and discipline the Individual Defendants and prevent other wrongful acts that were committed against Plaintiff.

122. In actively inflicting and failing to prevent the above stated abuses incurred by Plaintiff, all of the Defendants acted unreasonably, recklessly, and negligently in failing to exercise the slightest amount of due care to secure and protect the civil and constitutional rights of Plaintiff against illegal search and seizure, detained custody, false imprisonment, malicious prosecution, and other due process violations. Said rights are guaranteed to Plaintiff by 42 U.S.C. § 1983 and by the Fourth, Fifth, and Fourteenth Amendments of the U.S. Constitution.

123. The breach of duty by Defendants was a direct and proximate cause of the harm suffered by Plaintiff. Said harm includes psychological harm which continues to this day, monetary expenses, personal humiliation, damage to reputation, and loss of standing in the community.

124. That, by reason of the foregoing, Plaintiff suffered and continues to suffer irreparable injury and monetary damages, in a sum to be provided at trial but not less than ONE MILLION DOLLARS (\$1,000,000.00).

AS AND FOR A NINTH COUNT**Pendant State Claim – Negligent Hiring, Improper Supervision, and Improper Retention
(Against Defendants CITY and NYPD)**

125. Plaintiff repeats, reiterates, and realleges each and every allegation contained in those paragraphs of the Verified Complaint marked and numbered previously with the same force and effect as if more fully set forth at length herein.

126. Upon information and belief, it was the custom, policy, and practice of Defendants CITY and NYPD to hire certain police officers and supervisors, including the Individual Defendants, without conducting the appropriate background check, investigation, and psychological evaluations.

127. Upon information and belief, it was the custom, policy, and practice of Defendants CITY and NYPD to conduct inadequate investigations of police officers and supervisor candidates as was done with the Individual Defendants.

128. Upon information and belief, it was the custom, policy, and practice of Defendants CITY and NYPD to inadequately supervise the actions and conduct of police officers and supervisors, including the Individual Defendants.

129. Upon information and belief, it was the custom, policy, and practice of Defendants CITY and NYPD to continue to employ police officers and supervisors, including the Individual Defendants, after it is known that such police officers and supervisors consistently violate the constitutional rights of persons such as Plaintiff.

130. These customs, policies, and practices were the moving force, proximate cause, or affirmative link behind the conduct causing Plaintiff's injuries.

131. Defendants CITY and NYPD are therefore liable for violations of Plaintiff's constitutional rights, as caused by Defendants, as described in more detail in the foregoing paragraphs, and Plaintiff has suffered damages therefrom.

132. As a proximate result of Defendants' customs, policies, and practices for negligent hiring, improper supervision, and improper retention of police officers and supervisors, Plaintiff was greatly humiliated, injured in his reputation, caused to incur attorneys' fees, associated legal expenses and other special damages, and has suffered great mental anguish, all to Plaintiff's damage, in a sum to be provided at trial but not less than ONE MILLION DOLLARS (\$1,000,000.00).

AS AND FOR A TENTH COUNT
Pendant State Claim – *Respondeat Superior*
(Against Defendants CITY and NYPD)

133. Plaintiff repeats, reiterates, and realleges each and every allegation contained in those paragraphs of the Verified Complaint marked and numbered previously with the same force and effect as if more fully set forth at length herein.

134. By virtue of Defendant Officers' employment with Defendants CITY and NYPD and their actions within the scope of their employment, Defendants are liable for Defendant Officers' actions under a theory of *respondeat superior*.

135. As a result of the above-described conduct, Plaintiff was caused to be unlawfully seized, falsely arrested and imprisoned, maliciously prosecuted, placed in substantial fear for his life, mental torment, night terrors and nightmares, depression, fear, loss of enjoyment of life, and other mental, and psychological injuries, damage to his reputation, other special damages, has suffered great mental anguish, and has incurred and will continue to incur expenses for medical

and psychological treatment, therapy, and counseling, all to Plaintiff's damage, in an sum to be provided at trial but not less than ONE MILLION DOLLARS (\$1,000,000.00).

AS AND FOR AN ELEVENTH COUNT
42 U.S.C. § 1981 –Racial Profiling and Racial Discrimination
(Against All Defendants)

136. Plaintiff repeats, reiterates, and realleges each and every allegation contained in those paragraphs of the Verified Complaint marked and numbered previously with the same force and effect as if more fully set forth at length herein.

137. Defendants, acting under the color of state law, both collectively and individually, have engaged in actions and abuses which have deprived Plaintiff of his rights, privileges, and immunities secured by the United States Constitution, including but not limited to, rights secured by the Fourth, Fifth, and Fourteenth Amendments and other laws in violation of 42 U.S.C. § 1983.

138. Plaintiff was stopped at or near 139th Street and 140th Street, in the Bronx, New York not because he had committed any violation or crime, but because Plaintiff was profiled and arrested on account of being African American.

139. This was a clear violation of Plaintiff's due process rights protected by the Fourth, Fifth, and Fourteenth Amendments.

140. As a direct consequence of the actions of Defendants, Plaintiff suffered loss of standing in the community, loss of time, loss of freedom, loss of quality of life, and loss of regular income, damage to name and reputation, special damages, incidental fees/costs, and other financial impairments.

141. That by reason of the foregoing, Plaintiff suffered and continues to suffer irreparable injury and monetary damages, in excess of ONE MILLION DOLLARS (\$1,000,000.00), as well as punitive damages and attorneys' fees pursuant to Title 42 § 1988.

WHEREFORE, Plaintiff DANIEL E. LAWSON respectfully demands judgment against Defendants NEW YORK CITY, NEW YORK CITY POLICE DEPARTMENT, NEW YORK CITY POLICE OFFICER BRANDON GONZALEZ, in his individual and official capacities, and NEW YORK CITY POLICE OFFICER JOHN DOES #1-10 (fictitiously named), in their individual and official capacities, in an amount that exceeds the jurisdictional limits of all lower Courts, but no less than One Million Dollars on each of the Counts, plus punitive damages, attorneys' fees, costs, disbursements, and any such other and further relief as the Court deems just and proper.

Dated: Garden City, New York
January 3, 2024

Respectfully Submitted,
THE RUSSELL FRIEDMAN LAW GROUP, LLP
Attorneys for Plaintiff

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ATTORNEY VERIFICATION

PABLO A. FERNANDEZ, an attorney duly admitted to the practice of law in the Courts of the State of New York affirms the following to be true under the penalties of perjury:

I am the attorney for Plaintiff, DANIEL E. LAWSON, in the within action and I have read the foregoing Verified Complaint and know the contents thereof and the same is true to the knowledge of the affirmant, except as to the matters stated to be alleged upon information and belief and as to those matters I believe it to be true.

Affirmant further states that the reason why Plaintiff does not make this verification is that said Plaintiff reside in a County other than where affirmant has his office. That the grounds of affirmant's belief as to all matters not therein stated to be alleged upon his knowledge are investigations and information received by affirmant in the course of his duties as an attorney for said Plaintiff.

Dated: Garden City, New York
January 3, 2024

/s/Pablo A. Fernandez
PABLO A. FERNANDEZ